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January 26, 2017					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO. 1953(I)

KAIRAT NURGAZINOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**ORDER GRANTING JOINT MOTION FOR
FURTHER EXTENSION OF TIME REGARDING MOTION TO WITHDRAW**

On November 16, 2016, Eric Jeffrey, counsel for respondents Michael Hitrinov a/k/a Michael Khitrinov and Empire United Lines Co., filed a motion for leave to withdraw as counsel. As ground, counsel stated:

1. An impasse has been reached in the handling of the proceeding, making it impossible for the clients and attorney to continue to work cooperatively on the matter. Recent emails to the clients have gone without response.
2. The clients have not complied with the terms of their professional services agreement with Nixon Peabody, despite repeated warnings that Nixon Peabody will withdraw unless such obligations are fulfilled. See Rule

1.16(b)(5) of the American Bar Association's Model Rules of Professional Conduct ("ABA Model Rules").

3. In particular, the clients currently owe Nixon Peabody significant sums covering multiple invoices, some of which are now more than 120 days overdue. Continued representation of the clients would thus create an unreasonable financial burden on Nixon Peabody, and especially the undersigned. See ABA Model Rule 1.16(b)(6).
4. The clients will not suffer material adverse effect as a result of the withdrawal. The proceeding is currently at a point of pause, with nothing required to be filed by either side. An ancillary matter pending before the Commissioners has been fully briefed. Moreover, the Commission has recently extended the deadline for issuance of an initial decision in this proceeding from November 17, 2016, to May 15, 2017, and the time for issuance of a final decision from May 16, 2017 to November 16, 2017. . . . This provides ample time for the clients to seek substitute representation. Nixon Peabody and the undersigned will of course be prepared to assist in the transition.

(Motion for Leave to Withdraw at 1-2.) Complainants filed a response to the motion.

On November 22, 2016, Empire and Hitrinov's counsel filed a Motion for Extension of Time Regarding Motion to Withdraw that would enlarge the time for Empire and Hitrinov to respond to the motion to withdraw. The motion for extension was withdrawn. See email dated November 23, 2016, 12:59 PM from Assistant Secretary to counsel for Empire and Hitrinov informing him that the motion was deemed withdrawn.

On November 23, 2016, Empire and Hitrinov and Empire and Hitrinov's counsel filed a Joint Motion for Extension of Time Regarding Motion to Withdraw that would enlarge the time for Empire and Hitrinov to respond to the motion to withdraw, stating that after the November 22, 2016, motion was filed, counsel and clients had "extensive discussions regarding resolution of their differences, so that Mr. Jeffrey and Nixon Peabody and I may continue representing Empire and Mr. Hitrinov in this proceeding. We have made some progress, but additional time is required, especially given the imminent holiday and travel schedules of Mr. Jeffrey and Mr. Hitrinov." (Joint Motion for Extension of Time Regarding Motion to Withdraw at 1-2.) They also stated:

It is recognized by movants that resolution of the underlying motion to withdraw is necessary before Mr. Jeffrey and Nixon Peabody may resume substantive work on this proceeding, especially in light of Mr. Jeffrey's and Mr. Hitrinov's respective travel schedules, which will make coordination on any such matter next to impossible. According, each of Movants reserves the right to re-open the question of withdrawal and/or move for a stay, if such work becomes necessary.

(Joint Motion for Extension of Time Regarding Motion to Withdraw at 2.) They asked to extend the time for Empire and Hitrinov to respond to January 15, 2017. Complainants filed an opposition to the motion. No order was ever issued on the motion for extension.

On January 14, 2017, Hitrinov sent an email purporting to file a Joint Motion for Further Extension of Time Regarding Motion to Withdraw, but failed to attach the motion. On January 15, 2017, Hitrinov resent the email with the motion attached. In the motion, Empire and Hitrinov and Empire and Hitrinov's counsel request:

[F]urther extension of time until March 16, 2017 of the due date for Empire and Mr. Hitrinov's response to Mr. Jeffrey's motion to withdraw. Mr. Jeffrey and Mr. Hitrinov have continued to have extensive discussions regarding resolution of their differences, so that Mr. Jeffrey and Nixon Peabody may continue representing Empire and Mr. Hitrinov in this proceeding. We have made some progress, but additional time is required, especially given the travel schedules of Mr. Jeffrey and Mr. Hitrinov. Mr. Jeffrey is currently travelling to China and will not return to the office before January 23, 2017. He has therefore given respondents authority to make the instant request and to sign per email authority. To the extent required Mr. Jeffrey will provide his signature upon his return from China.

(Joint Motion for Further Extension of Time Regarding Motion to Withdraw at 1-2.) On January 18, 2017, Complainants filed an opposition to the motion for further extension.

Although at times the litigation of this proceeding has been complicated instead of advanced by the filings of counsel for both sides, the undersigned believes that if the differences between Respondents and their counsel are resolved, it is in the interest of these proceedings and the Commission to have counsel continue his representation of Empire and Hitrinov. Empire and Hitrinov's motion for judgment on the pleadings has been fully briefed and is currently under advisement and no filings for which the unsettled relationship between Empire and Hitrinov and their counsel would complicate preparation are currently expected from the parties. Therefore, it is hereby

ORDERED that the Joint Motion for Further Extension of Time Regarding Motion to Withdraw be **GRANTED**. The time for Empire and Hitrinov to respond to Mr. Jeffrey's motion to withdraw is extended to March 16, 2017. It is

FURTHER ORDERED that the Joint Motion for Extension of Time Regarding Motion to Withdraw filed on November 23, 2016, be **DISMISSED AS MOOT**.


Clay G. Guthridge
Administrative Law Judge